

and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The 'mandatory' provision relates to times when an attorney admits fault in causing the default. That provision is not at issue here.

Analysis

California law is clear that a corporation "cannot represent itself in court in propria persona but must appear through an agent who is a member of the bar." (*Rogers v. Mun. Court* (1988) 197 Cal.App.3d 1314, 1318) "A corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney." (*Merco Constr. Engrineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729 citations omitted.) If a corporation agent, for example an officer or director, attempts to represent the corporation in court proceedings, and s/he is "not an attorney, that person would be engaging in the unlicensed practice of law." (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

In the motion, Mr. Kalnytskyi makes clear that he "is fully aware that under California law, corporations must be represented in court by a licensed attorney." (Motion at 3:7-9.) He then goes on to argue on behalf of Akrian Inc.

As noted by Plaintiff, the Court has already informed Mr. Kalnytskyi that "Defendant Akrian, Inc. must be represented in court by an attorney and Mr. Kalnytskyi cannot represent Akrian, Inc. in court." (July 10, 2026 Order re Special Motion to Strike.) Despite this, Mr. Kalnytskyi continues to attempt to represent and defend Akrian Inc.

As Mr. Kalnytskyi does not have the authority to file this motion on behalf of Akrian, Inc. – the motion is **denied**.

Conclusion

Defendant Akrian, Inc.'s motion to set aside the default is **denied** to the extent the Court can even rule on a motion improperly filed by a lay person on behalf of a corporate defendant.

Mr. Kalnytskyi is again reminded that he must have an attorney represent Akrian, Inc. and that his continued attempts to represent that entity as a non-attorney may subject him to sanctions for the unlicensed practice of law. ("[T]he unlicensed person who practices law is potentially subject to various criminal, civil and contempt sanctions." *Russell v. Dopp* (1995) 36 Cal.App.4th 765, 774.)

10. 9:00 AM CASE NUMBER: MSC22-00199

CASE NAME: MANSELL-MOULLIN VS HOSMER

MOTION TO BE RELIEVED AS COUNSEL AS TO PLTF

FILED BY:

TENTATIVE RULING:

The unopposed motion of **Elizabeth Poppy and Colleen Cleary and the law firm of Burke, Williams & Sorensen, LLP** to be relieved as counsel is **withdrawn** and hearing is **vacated** at the rest of the

moving party.

11. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE
((CONTINUED FROM 03.27.2026))
FILED BY:
TENTATIVE RULING:

As discussed below, the **demurrers are sustained, without leave to amend**. The **motions to strike are denied as moot**.

I. Background Common to the Four Petitions

Kenneth Lee Storey was allegedly injured when Paul George Nelson mishandled a firearm. Storey retained counsel and filed a personal injury lawsuit, *Kenneth Lee Storey v. Paul George Nelson*, Contra Costa Superior Court, Case No. C17-02127. In November of 2018 Storey obtained a default judgment in the amount of \$1,205,333.37 against Nelson. On April 25, 2019, an Abstract of Judgment was recorded with the Contra Costa County Recorder's Office naming Storey as a judgment creditor.

Judgment debtor Nelson then failed to pay property taxes and respondents sold the property to recover the taxes owed on May 24, 2023. The tax deed was recorded on June 13, 2023, reflecting that, after satisfaction of all delinquent taxes, the 'excess proceeds' are \$361,007.97. The County gave notice to certain parties, including Storey. Several parties filed claims, not including Storey. All the claims were denied except a claim by the Franchise Tax Board, which was paid \$4,847.68 from the funds based on a claim it had submitted.

The present consolidated matter involves four separate petitions for writs of mandate, among other claims, filed by those parties that filed claims to the funds. Each of petitioners' claims stem from the original default judgment in favor of Storey. Petitioners seek to compel the respondents (Contra Costa County and its Treasurer-Tax Collector, Dan M. Mierzwa) to set aside the denials of petitioners' claims and release the excess proceeds from the sale of this property to them according to their claimed interests. The four actions were consolidated for all purposes on February 2, 2026 pursuant to Code of Civil Procedure section 1048 and stipulation of the parties.

The Court now rules on the four demurrers filed by respondents pursuant to California Code of Civil Procedure sections 430.10, subdivision (e) (relating to a demurrer for failure to state facts sufficient to constitute a cause of action), 1089 (providing that "[o]n the date [...] on which the application for the writ is noticed, [...] the party upon whom the writ or notice has been served may make a return by demurrer [...]"), and 1109 (providing for the applicability of statutes governing civil actions to writ proceedings), and California Revenue and Taxation Code section 4675 (relating to the disbursement of excess proceeds).

II. Legal Background

The court in *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, quoted below, sets